

will not be helped by a fine levied (*k*), or even by a [*186] release from the *cestui que trust*, if executed * by him while in ignorance of the facts of the case (*a*). However, a purchaser will stand in the place of his assignor in respect of any allowances for expenses incurred in the renewal (*b*).

16. **Limitation of time.** — A *cestui que trust* will be barred of his remedy if he be guilty of long *acquiescence*, as, in one case, for a period of fifteen years (*c*); and in another case concerning a lease of mines (which stand on a peculiar footing,) relief was refused after a period of nine years (*d*), and continual claim by the *cestui que trust*, if without any effective step to enforce the right, will be of no avail (*e*).

17. **Case of trustee of a lease purchasing the reversion.** — If the trustee of a lease become the *purchaser of the reversion* Sir W. Grant said, that, as he thereby intercepts and cuts off the chance of future renewals, and consequently makes use of his situation to prejudice the interests of those who stand behind him, there might be some sort of equity in a claim to have the reversion considered as a substitution for those interests, but his Honour was not aware of any determination to that effect (*f*). [However it has recently been held in a case in Ireland that a trustee of leaseholds customarily renewable, who purchased the reversion at a sale by auction was a constructive trustee for the persons beneficially interested in the leaseholds (*g*); and in another recent case where the assignee of the tenant for life of leaseholds which had been customarily renewable, but which the Ecclesiastical Commissioners had refused to renew any more, purchased the reversion, it was held that he had become a trustee of the reversion for the benefit of the persons

(*k*) *Bowles v. Stewart*, 1 Sch. & Lef. 209.

(*a*) *Bowles v. Stewart*, 1 Sch. & Lef. 209.

(*b*) *Coppin v. Fernyhough*, 2 B. C. C. 291.

(*c*) *Isald v. Fitzgerald*, cited Owen v. Williams, Amb. 735, 737; and see *Norris v. Le Neve*, 3 Atk. 38; *Jackson v. Welsh*, Ll. & G. Rep. t. Plunket, 346.

(*d*) *Clegg v. Edmondson*, 8 De G. M. & G. 787.

(*e*) *Clegg v. Edmondson*, 8 De G. M. & G. 787.

(*f*) *Randall v. Russell*, 3 Mer. 197; and see *Hardman v. Johnson*, ib. 347; *Norris v. Le Neve*, 3 Atk. 37 and 38; *Lesley's case*, 2 Freem. 52; *Fosbrooke v. Balguy*, 1 M. & K. 226; *Giddings v. Giddings*, 3 Russ. 241.

(*g*) *Gabbett v. Lawder*, 11 L. R.